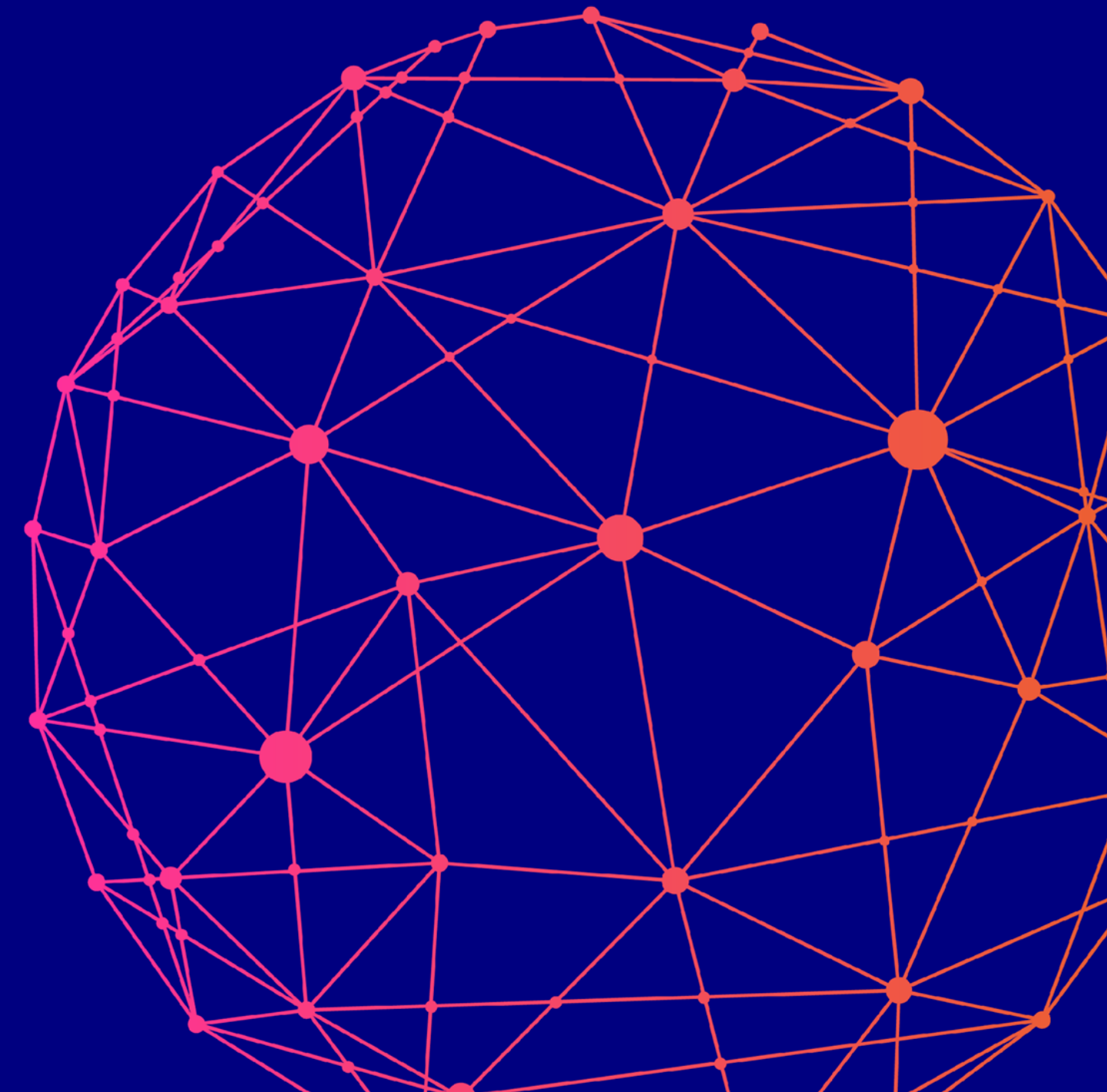


Data Spaces Symposium

Accelerating adoption. Increasing impact.

Legal enablers for data spaces – a national perspective

Elena T. M. Spolidoro, Policy Officer Digitalisation
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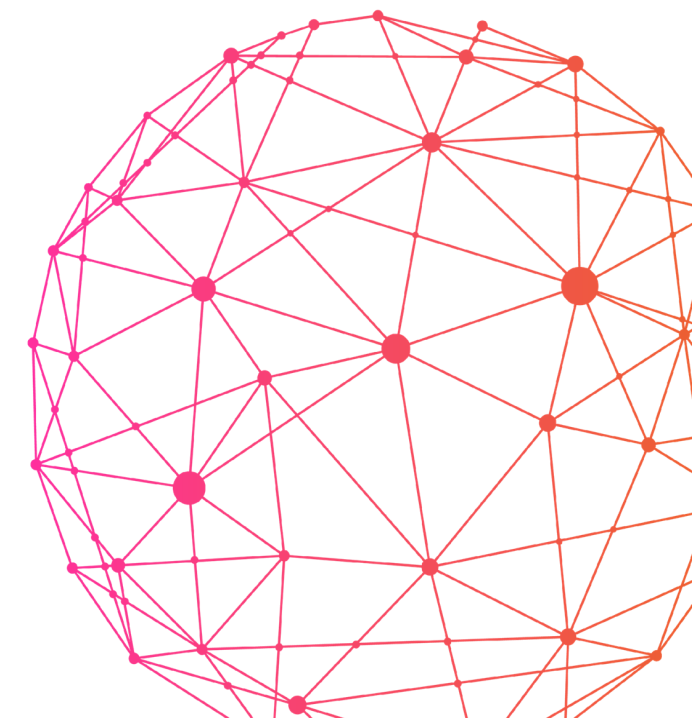


Legal enablers for data spaces

A national perspective: The Netherlands

Topics:

- A national authorities' perspective: The Netherlands Authority for Consumers and Markets (ACM)
- Building legal skills
- A private sector initiative: The Agrifood Code of Conduct for Data Use



Legal enablers for data spaces: a national authorities' perspective

The Netherlands Authority for Consumers and Markets (ACM)

Data Governance Act

1. Registration of data intermediation service providers (supervision ex post: the ACM acts if made aware of a violation)
2. Certification for EU label (supervision ex ante)

Individuals' responses vary
(some parties see the value, other feel overwhelmed by the requirements)

Definition of data intermediation service provider: need to overcome ambiguity

Neutrality: need to rebalance the requirements (focus on prohibition to offer other services and commercial terms and pricing)

(Mis)use of data: focus on prevention (e.g., prevent fraudulent and abusive practices; put in place legal measures to prevent unlawful transfer or access to personal data; ...)

Data Act

Supervision just started (3 months)

1. Handling **complaints** from alleged infringements (some signals have already been received, mostly automotive, energy, health, not yet from agro)
2. Conducting **investigations**, imposing **penalties**, ...
3. **Decisions** without undue delay on refusal to share data (e.g., if trade secrets)
4. Examining requests pursuant to **Chapter V** (making data available to public bodies if exceptional need)
5. Promoting **data literacy** (e.g., explainer videos) and awareness (working together with representative organisation from various sectors), ...

Legal enablers for data spaces: a national perspective

Building legal skills

The agri-food sector lack the capacity/skill to investigate and understand the impact of laws and regulations on the digital transition. We support activities aimed at growing the sector capacity to identify, adopt and make the best of the available legal instruments.

Example initiatives from the Ministry of Agriculture, Fisheries, Food Security and Nature (The Netherlands)

Support to researchers

In the HE partnership Agriculture of Data (AgData) we lead a work package aimed at growing researchers' ability to identify and independently tackle legal aspects from the design phase (e.g., privacy, liability and contractual aspects).

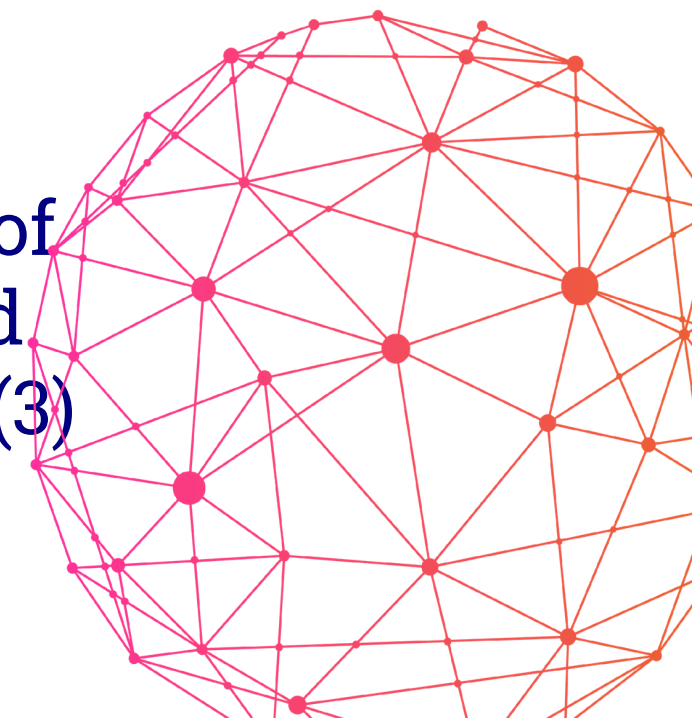
Support to the sector

We support the activities of the ELSA Lab for Sustainable Food Systems (Wageningen University & Research), a laboratory where technology companies and researchers can find knowledge about the Ethical, Legal, and Social Aspects (ELSA) of AI, as well as services that help them develop innovative AI applications for the transition to a sustainable food system.

Legal enablers for data spaces: a national perspective

A private sector initiative: The Agrifood Code of Conduct for Data Use

- Drawn up by BO Akkerbouw together with other agri-food chain organisation (Private-Public-Partnership together with the Dutch Ministry of Agriculture, Fisheries, Food Security and Nature)
- First Code published in 2019. Updated in 2023 to align with **EU Data Act** and **Data Governance Act**, new technological developments, and to tackle trust issues.
- Characterised by **voluntariness**; best practice/guidance; aim to **influence** organisations behaviour.
- **Broader scope respect to the Data Act** (1) to cover data sharing dynamics typical of the agri-food sector that do not fall under the Data Act; (2) to support the agri-food sector visualizing the impact of existing legal frameworks and making use of it; (3) to test the readiness of the sector to experiment and go beyond baseline requirements.



Legal enablers for data spaces: a national perspective

Thank you for your attention!

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